

## 26STCV04280 26STCV04280

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-16

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C309%2C09%2F16%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C09%2F16%2F2026)

Source SHA-256: 7419ab281c980b30bccd3b569d92ac91fc1d9636282d9cedf1710554a1bd41ef

Case Number: 26STCV04280 Hearing Date: September 16, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

CRESSIDAC LLC

vs.

TRAVELERS CASUALTY INSURANCE COMPANY OF  
AMERICA, et al.

Case

No.: 26STCV04280

Hearing Date: September 16, 2026

Defendant's

demurrer to the first and second causes of action is OVERRULED.

On

2/10/2026, Plaintiff Cressidac LLC (Plaintiff) filed suit against Travelers

Casualty Insurance Company of America and Pacific Way Insurance Services, Inc.

On 4/15/2026, Plaintiff filed a first amended complaint (FAC), alleging: (1)

breach of insurance contract; (2) tortious breach of the duty of good faith and fair dealing; and (3) professional negligence.

On

5/14/2026, Defendant Travelers Casualty Insurance Company of America (Defendant or Travelers) demurred to the first and second causes of action.

Discussion

Defendant

argues that Plaintiff's first and second causes of action are insufficiently pled.

As

for the first cause of action for breach of contract, Defendant argues that claim is barred by the policy's two-year suit limitation provision, and pursuant to California Insurance Code Section 2071. Defendant further argues that claim is defective as it alleges damages to "units and addresses" that are not listed locations or premises under the policy, which is unambiguous with respect to the listed location, premises, and building.

Indeed,

the Travelers' policy provides, in relevant part:

F. COMMERCIAL

PROPERTY CONDITIONS . . .

...

4. Legal

Action Against Us. No one may bring a legal action against us under this Coverage Form unless:

b. The action

is brought within 2 years after the date on which the direct physical loss or damage occurred.

(RJN, ¶14, Ex. D, Special

Provisions-California, Form MP T1 02 02 05, at Bates Number: TRAVELERS DOC MGMT

Page 70 of 152.)

Here,

Plaintiff alleges that:

-

Defendant Pacific Way procured a commercial property insurance policy issued by Travelers, which provided coverage for Plaintiff's commercial property located at or about 11035 Sherman Way, Los Angeles, California 91352 (Property).

-

That, on or about 5/6/2023, a fire occurred at the Property, causing significant physical damage to the building and resulting in loss of use and rental income (the "Loss"). (FAC, ¶ 17)

-

It timely reported the Loss to Travelers, and that Plaintiff fully cooperated with Travelers' investigation, including providing access to the Property, documentation, estimates, and other information requested for the claim. (FAC, ¶18.)

-

On 1/26/2024, Travelers confirmed that after review of the leases for the Property, it would issue payment for loss of use (FAC, ¶26) and that on or about February 13, 2024, Travelers issued a second payment to Plaintiff (FAC, ¶27).

Given that

the alleged loss took place on 5/6/2023, Defendant contends that the two-year statute of limitations expired on 5/6/2025. However, Plaintiff alleges that on 2/13/2024, Travelers issued a second payment (FAC, ¶27), but thereafter, denied Plaintiff's requests for additional benefits (FAC ¶28). Accordingly, the facts supporting the alleged breach of contract did not arise until after 2/13/2024. This action was filed on 2/10/2026, and thus Plaintiff has alleged facts which could show that the claim is not barred. (Prudential-LMI Commercial Ins. v. Superior Court (1990) 51 Cal.3d 674, 684.) Moreover, the Court finds Plaintiff's allegations sufficient at the pleadings stage to support equitable tolling.

The Court

finds Plaintiff's allegations otherwise to be sufficient at the pleadings stage, and does not find them to be either so ambiguous or uncertain that Defendant cannot reasonably discern the nature of the claims against it.

As

for the second cause of action, Defendant argues that this claim is barred by the two-year statute of limitations for tortious bad faith, and is insufficiently pled.

For

the same reasons set forth above, the Court does not find the claim time-barred. Moreover, the Court finds Plaintiff's allegations to be sufficient at the pleadings stage.

Based

on the foregoing, Defendant's demurrer is overruled.

It is so ordered.

Dated: September  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must send an email to the court at [smcdept17@lacourt.org](mailto:smcdept17@lacourt.org) by 4 p.m. the day prior as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.